

BEYOND THE GRAVE – AN ANALYSIS OF SEXUAL VIOLENCE AGAINST HUMAN REMAINS IN INDIA

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I. Abstract

Death does not necessarily mean that every legal interest attached to the human body disappears. Yet when a dead body is subjected to sexual acts, Indian law does not provide a clear answer as to what offence has been committed. This paper examines that gap and asks whether human remains require specific legal protection against sexual violence.

The research first examines the existing Indian legal framework, including the relevant provisions of the IPC and the BNS. It focuses particularly on *Rangaraju @ Vajapeyi v. State of Karnataka*, where the Karnataka High Court held that a dead body could not fall within the statutory meaning of a “woman” for the purposes of rape law and highlighted the need for legislative intervention. The paper also examines the history of Section 377 IPC, its reading down in *Navtej Singh Johar v. Union of India*, and its eventual removal under the BNS.

The paper then takes a comparative approach by examining the United Kingdom, South Africa, Canada, Australia, Germany and Italy. These jurisdictions follow different approaches: some expressly criminalise sexual activity with a corpse, while others rely on broader offences dealing with indignity, desecration or interference with human remains. The purpose of this comparison is not simply to identify which country imposes the harshest punishment, but to understand what India can learn from these different models.

The research also considers whether sexual violence against human remains should be criminalised at all. It examines posthumous dignity, consent, the harm principle and legal moralism, while recognising that criminal law should not be based only on moral disgust. The paper therefore asks whether the dignity, bodily integrity and protected interests attached to human remains are sufficient to justify independent criminal protection.

Finally, the paper proposes a possible framework for an Indian offence. It considers what should constitute prohibited conduct, including penetration, sexual touching and other forms of sexual contact, as well as the required actus reus and mens rea. It further considers the scope of the offence, aggravating circumstances such as abuse of professional access, appropriate punishment, evidentiary difficulties and safeguards for legitimate medical, forensic, scientific and funeral practices.

The central argument of the paper is that India does not necessarily need an offence literally called “necrophilia.” What it needs is a clear, specific and workable legal

provision that identifies sexual activity involving human remains as criminal conduct and provides a legally certain route to prosecution.

II. Introduction

Bodies are buried with the hope that the final resting place will provide the dead with peace and dignity. Death may end a person's life, but it does not necessarily end society's responsibility towards what remains of that person. This becomes especially difficult when the body itself becomes the subject of a sexual act. The question then is simple, but uncomfortable: when a person is no longer alive, what exactly does the law protect?

But what exactly is necrophilia? In its simplest sense, necrophilia refers to sexual attraction towards, or sexual acts involving, a corpse. The subject is disturbing not only because of the act itself, but because it sits in an unusual space between criminal law, morality, dignity and the treatment of the dead.

There are different explanations for why such conduct may occur, including attempts to exercise dominance or, in some cases, attempts at overcoming grief. However, whatever the reason may be, the more important legal question is whether the conduct should be criminalised and, if so, under what law.

Indian criminal law does not currently provide a specific offence dealing with sexual activity involving a human corpse. The IPC contained provisions which could appear relevant, particularly Section 297 concerning indignity to a human corpse and Section 377 concerning “unnatural offences,” but neither provision expressly created an offence of sexual activity with a corpse. This became particularly clear in *Rangaraju @ Vajapeyi v. State of Karnataka*, where the Karnataka High Court held that the existing rape provisions could not be applied to a dead body and highlighted the need for legislative intervention.

The introduction of the Bharatiya Nyaya Sanhita, 2023 was therefore an important opportunity to reconsider this gap. Although the BNS retains protection against indignity to a human corpse under Section 301, it does not create a separate offence addressing sexual activity involving human remains. The Supreme Court's dismissal of the State's challenge in 2025 further reinforced that necrophilia is not presently established as a distinct criminal offence in India.

This paper examines that gap from both a legal and jurisprudential perspective. It first looks at the existing Indian framework and the cases which have exposed its limitations. It then compares India's position with the United Kingdom, South Africa, Canada, Australia, Germany and Italy to understand how different legal systems approach sexual conduct involving human remains. The paper also asks a broader question: should such conduct be criminalised simply because it is considered morally wrong, or is there a stronger legal basis for doing so?

To answer this, the paper considers posthumous dignity, consent, the harm principle and legal moralism. Finally, it proposes a possible Indian framework dealing specifically with sexual violence against human remains, including the prohibited conduct, actus reus, mens

rea, scope, punishment, aggravating circumstances, evidentiary concerns and safeguards for legitimate medical, forensic and funeral practices.

The aim is not merely to argue that necrophilia is disturbing or wrong. It is to examine whether Indian criminal law currently provides a sufficient legal response to it—and, if it does not, what that response should look like.

III. Jurisprudence

A morally wrong act should not be criminalised just because it disgusts you. Criminal law requires something more than public discomfort or moral outrage. The question here, therefore, is not simply whether necrophilia is disturbing. It is whether the conduct violates an interest that the law has a legitimate reason to protect.

To understand whether sexual violence against human remains should be criminalised, four ideas are particularly important.

1. Posthumous Dignity

A person's death does not necessarily mean that their body loses all dignity or legal protection. Human remains are still expected to be treated with respect, and Indian law itself recognises this to a limited extent. From this perspective, sexual use of a corpse can be viewed as a violation of the dignity that continues after death.

The idea of posthumous dignity therefore provides one of the strongest arguments for criminalisation. The law would not be protecting the corpse because it is still a living person, but because death does not necessarily erase every interest society considers worthy of protection.

2. Consent

Consent becomes more complicated when the person is dead because a corpse cannot give, withdraw or communicate consent. However, a person may have expressed wishes during their lifetime regarding what should happen to their body after death.

This raises an important question: should those wishes have legal significance? They may help explain why posthumous dignity matters, but relying entirely on alleged prior consent could create serious evidentiary problems. A criminal offence should therefore not depend on whether someone claims that the deceased had previously agreed to such conduct.

3. Harm Principle

The harm principle raises perhaps the most difficult question. A dead person cannot experience physical pain or psychological trauma in the same way as a living person. On a narrow understanding of harm, this may weaken the argument for criminalisation.

However, harm does not necessarily have to be limited to physical suffering. The violation of bodily integrity, posthumous dignity and the interests of the deceased's family may be considered legally protected interests. The question is therefore whether these interests are serious enough to justify criminal punishment.

4. Legal Moralism

Legal moralism approaches the issue differently. It asks whether conduct can be criminalised even where conventional harm is difficult to establish, because the conduct seriously violates accepted moral standards.

This principle may support criminalisation of sexual violence against human remains, but morality alone should not be enough. Otherwise, criminal law could become a tool for punishing conduct simply because society finds it offensive.

The stronger argument is therefore not that necrophilia should be criminalised because it is disgusting, but that human remains possess a legally recognisable sphere of dignity and protection even after death. If that protection is important enough to justify criminal law, then Parliament must also decide what conduct falls within it and how far that protection should extend.

IV. Legal provisions in India

There is no specific law governing necrophilia in India. Existing laws primarily address sexual offences against living individuals, while cases involving sexual violence against dead bodies may have to be addressed through other applicable offences.

1. IPC- previously The Indian penal code; before being replaced by BNS, 2023

1. **Section 297:** prohibits removal or use of any dead body for disrespectful purposes, punishable by imprisonment and fines. It addresses trespassing on burial places or offering indignity to a human corpse;
2. **Section 377:** criminalised certain acts described as “unnatural offences.” However, it did not extend to sexual acts involving dead bodies, leaving necrophilia outside its scope.

Section 377 of the IPC has now been entirely repealed. It criminalised “carnal intercourse against the order of nature” with a man, woman or animal. In *Navtej Singh Johar v. Union of India*, the Supreme Court read down the provision and held that it could not be used to criminalise consensual same-sex relations between adults, as this violated their fundamental rights. Section 377 was subsequently removed when the BNS came into force on 1 July 2024. This is important in cases of necrophilia because the IPC never contained a specific offence dealing with sexual acts involving a dead body. In *Rangaraju @ Vajapeyi v. State of Karnataka*, the Karnataka High Court held that a dead body could

not be treated as a “man” or “woman” under Sections 375 or 377. Therefore, sexual intercourse with a corpse could not be treated as rape or prosecuted under Section 377. The Court called for legislative intervention, either by extending the existing law or by creating a separate offence specifically addressing necrophilia. The repeal of Section 377 also removed the IPC provision that covered “carnal intercourse” with an animal. The BNS does not contain an equivalent general provision criminalising sexual acts with animals.

2. BNS- .Bharatiya Nyaya Sanhita, 2023

Still does not explicitly address sexual violence of the human remains. The new criminal law, which came into force on 1 July 2024, represents a missed opportunity to expressly address the crime of necrophilia. The BNS provides limited protection to the dignity and interests of deceased persons through provisions such as:

1. **Section 315**, concerning dishonest or fraudulent dealings with the property of a deceased person;
2. **Section 356**, which covers criminal defamation of a deceased person;
3. **Section 351**, which addresses criminal intimidation involving threats to harm the reputation of a deceased person who is dear to the person threatened.

However, none of these provisions specifically criminalise sexual acts involving a dead body. Thus, although Indian criminal law affords limited protection to the dignity of the deceased, it continues to lack a specific provision addressing necrophilia. This legislative gap highlights the need for legal reform to expressly criminalise necrophilia and other comparable forms of sexual abuse of deceased persons.

3. Other Provisions Associated with Necrophilia

Section 301 of the BNS, previously Section 297 of the IPC, is the closest Indian law to protecting the dignity of the dead, yet its protection remains narrow. It criminalises offering indignity to a human corpse in certain circumstances, but it does not specifically address sexual acts involving a corpse. The provision also carries a maximum punishment of only one year. This raises the question of whether the existing maximum punishment is proportionate to sexual violation of a corpse.

Sections 63 and 64 of the BNS, previously Sections 375 and 376 of the IPC, are built around a living victim. Section 63 defines rape as an offence committed by a man against a woman, leaving no clear room for a corpse. This distinction became decisive in *Rangaraju Vajapeyi v. State of Karnataka*, where the Karnataka High Court set aside the accused’s conviction for rape after he had sexually assaulted the victim’s dead body. The Court held that a corpse could not fall within the statutory meaning of a “woman” for the purposes of rape law. The significance of the decision goes beyond one conviction. It exposes a basic limitation in the structure of Indian rape law: it is designed to protect the living, while necrophilia falls into a space the statute never

expressly contemplated. The Court therefore called for legislative intervention, either by extending the existing law or by creating a separate offence for necrophilia. Until such a provision exists, sexual intercourse with a corpse cannot simply be treated as rape because the statutory definition does not extend to a dead body.

This leaves a clear gap in the law. Necrophilia is still not specifically criminalised in India. Section 301 of the BNS, corresponding to Section 297 of the IPC, protects the dignity of the dead by criminalising the offering of indignity to a human corpse in certain circumstances. However, it is not a specific sexual offence and does not directly address sexual acts involving corpses. It also carries a maximum punishment of only one year. Although the law provides some protection to the dignity of the deceased, it does not specifically criminalise necrophilia or prescribe a separate punishment for it. This highlights the need for a specific provision dealing with necrophilia.

V. CASES OF NECROPHILIA IN INDIA

1. *Rangaraju @ Vajapeyi v. State of Karnataka* (Karnataka High Court, 2023)

Facts: The accused murdered a 21-year-old woman and subsequently had sexual intercourse with her dead body. He was convicted for murder and rape by the trial court.

Verdict: The Karnataka High Court upheld the conviction for murder but set aside the conviction for rape. It held that a dead body could not be treated as a “man” or “woman” for the purposes of Sections 375 and 377 IPC. Therefore, the sexual act could not be prosecuted as rape under Section 376 or as an offence under Section 377. The Court also specifically called for legislative intervention to address necrophilia.

Why it matters: This case clearly highlights the legislative gap in Indian law. The Court recognised that sexual intercourse with a corpse may amount to necrophilia, but the IPC did not contain a provision that could be used to punish the act itself. It therefore showed that the problem was not whether the conduct was morally wrong, but whether the existing criminal law actually created an offence for it.

***State of Karnataka v. Rangaraju @ Vajapeyi* (Supreme Court, 2025) Subsequent (Supreme Court proceedings — 2025)**

Verdict: The Supreme Court dismissed Karnataka's challenge to the High Court judgment. It noted that the accused had been convicted for murder but that the rape conviction had been set aside because the rape was committed on a dead body. The

Supreme Court stated that “nothing has been shown” to establish necrophilia as an offence and declined to take a different view from the High Court.

Why it matters: This case is important because it confirms the legal gap at the Supreme Court level. The issue was not merely that the Karnataka High Court had adopted a narrow interpretation of the IPC; the Supreme Court did not interfere with that position. As a result, the question of whether necrophilia should be separately criminalised remains primarily a matter for the legislature.

2. Neelkanth @ Neelu Nagesh v. State of Chhattisgarh (Chhattisgarh High Court, 2024)

Facts: The case involved the murder of a nine-year-old girl. After her death, the accused committed sexual intercourse with her dead body before it was buried.

Verdict: The case again raised the difficulty of treating sexual intercourse with a corpse as rape. The High Court proceedings recorded that the accused could not be convicted under Section 377 IPC for the sexual act committed on the dead body, and the relevant conviction ultimately rested on other offences.

Why it matters: This case highlights that the problem identified in Rangaraju was not limited to one case or one set of facts. Even where the victim was a child and the conduct was particularly grave, the existing provisions did not provide a clear offence for the sexual act committed after death. It therefore reinforces the argument that Indian law needs a specific provision rather than relying on provisions designed to protect living victims.

VI. Legal provisions of foreign legislations

All countries do not treat necrophilia in the same way. Some have a specific offence, while others treat it as desecration or indignity to human remains, which is much closer to India’s current position.

1. United Kingdom — England and Wales:

Under Section 70 of the Sexual Offences Act 2003, sexual penetration of a corpse was made a criminal offence and was punishable by up to two years’ imprisonment. However, the provision originally did not cover sexual touching. This was changed on **29 September 2026**, when the law was expanded to cover both sexual touching and penetration of a dead body.

The maximum penalty is now seven years’ imprisonment where the conduct involves sexual touching and penetration, and five years where there is sexual touching without penetration.

2. South Africa:

South Africa specifically criminalises sexual acts with a corpse under Section 14 of the Criminal Law (Sexual Offences and Related Matters) Amendment Act 32 of 2007. The provision directly identifies the conduct as an offence, meaning that prosecutors do not have to rely on a general offence relating to the dignity or desecration of human remains to address sexual conduct.

Section 14 itself does not prescribe a separate minimum or maximum sentence, with sentencing governed by the applicable general sentencing framework.

3. Canada:

Canada does not have a specific offence called necrophilia, but Section 182 of the Criminal Code criminalises improperly or indecently interfering with, or offering any indignity to, a dead human body or human remains, whether buried or not. It is an indictable offence punishable by up to five years' imprisonment, or it may be prosecuted summarily.

4. Australia — New South Wales

Australia does not have one single nationwide offence dealing with sexual activity involving corpses because criminal law is primarily dealt with at the state and territory level. In New South Wales, Section 81C of the *Crimes Act 1900* criminalises indecently interfering with a dead human body, as well as improperly interfering with or offering any indignity to a dead human body or human remains, whether buried or not. Following the 2025 amendments, the maximum penalty is three years' imprisonment under Section 81C(a) for indecent interference and two years under Section 81C(b) for other improper interference or indignity. The amendment also introduced Section 80AH, which addresses cases where it is uncertain whether the victim was alive or deceased when the sexual interference occurred. The conduct is therefore criminalised through broader corpse-protection provisions rather than as a standalone offence specifically called necrophilia.

5. Germany:

Section 168 of the German Criminal Code criminalises the disturbance of the peace of the dead. It covers, among other things, removing a corpse or parts of a corpse from the custody of the person entitled to them or committing defamatory mischief upon

the body, its parts or ashes. The maximum punishment is up to three years' imprisonment or a fine.

6. Italy:

Italy does not have a separate offence specifically called necrophilia, but Article 410 of the Italian Penal Code criminalises the desecration of a corpse. The basic offence is punishable with one to three years of imprisonment. Where the offender mutilates or disfigures the corpse, or commits acts of brutality or obscenity upon it, the punishment increases to three to six years. Thus, sexual conduct involving a corpse may fall within the broader protection provided against acts of brutality or obscenity, rather than being treated as a separate offence of necrophilia.

VII. CASES OF NECROPHILIA OUTSIDE INDIA

1. S v Litsili (South Africa, 2011)

Facts: The accused was charged with murder, theft and, alternatively to rape, committing a sexual act with a corpse under Section 14 of the Criminal Law (Sexual Offences and Related Matters) Amendment Act 32 of 2007. The evidence established that the sexual act took place after the victim had died.

Verdict: The High Court found the accused guilty of murder, theft and committing a sexual act with a human corpse under Section 14. The Court specifically found that the sexual act had been committed after the victim's death.

Why it matters: This case provides a direct contrast with India. South African law did not have to stretch its rape provisions or rely on a general offence protecting corpses. Section 14 expressly recognised sexual acts with a corpse as a criminal offence. The case therefore demonstrates how a specific statutory provision can provide a clear basis for prosecution where Indian law currently does not.

2. R v David Fuller / David Fuller case (England and Wales, 2021)

Facts: David Fuller, who worked at hospitals, sexually abused the bodies of deceased women in hospital mortuaries. He was prosecuted under Section 70 of the Sexual Offences Act 2003 for sexual penetration of a corpse, in addition to being prosecuted for two murders.

Verdict: Fuller pleaded guilty to the relevant offences and received a whole-life sentence for the murders, alongside additional sentences for the sexual offences involving the bodies.

Why it matters: The case highlights an important issue beyond simply whether necrophilia is criminalised: what exactly should the offence cover? The case exposed the limitations of the UK's earlier Section 70, which focused on sexual penetration of a corpse rather than all forms of sexual contact. This makes the UK experience particularly relevant to the question of whether Indian legislation, if introduced, should cover only penetration or both penetration and other forms of sexual touching.

3. German necrophilia case — An Extreme Case of Necrophilia

Facts: The case involved a man who was convicted on two occasions for offences involving the desecration of the dead after engaging in necrophilic acts over a period of approximately 15 years.

Verdict: The conduct was dealt with through Germany's broader criminal provisions protecting the peace and dignity of the dead rather than through a separate offence called “necrophilia.”

Why it matters: This case highlights that a country does not necessarily need to create an offence named “necrophilia” to provide a legal basis for prosecution. Germany demonstrates the alternative approach of using broader offences concerning the treatment of corpses. This is useful for comparison with India's Section 301 BNS, because the real question is whether the existing offence provides a sufficiently clear and effective basis for prosecuting sexual conduct involving a corpse.

VIII. Legislative Gap in India

The question is not whether India has laws that protect the dead. It does. The problem is that these protections do not clearly extend to sexual violence against human remains.

Section 301 of the BNS, previously Section 297 of the IPC, is the closest existing provision to protecting the dignity of human remains. It criminalises, among other things, offering any indignity to a human corpse, but only where the required intention or knowledge relating to wounding feelings or insulting religion is present. It therefore provides limited protection and does not specifically criminalise sexual conduct involving a corpse.

The gap becomes clearer when the Indian position is compared with other jurisdictions. The United Kingdom and South Africa expressly address sexual conduct involving a corpse, while countries such as Canada, Australia, Germany and Italy rely on broader offences concerning indignity, desecration or interference with human

remains. The approaches differ, but they provide a clearer legal route through which such conduct can be addressed.

India, however, does not have a specific offence under which sexual activity with a corpse, by itself, is clearly criminalised. This was brought into focus in *Rangaraju @ Vajapeyi v. State of Karnataka*. The Karnataka High Court held that the existing provisions on rape and unnatural offences could not be applied to sexual intercourse with a dead body and set aside the conviction under Section 376 IPC. The Court also recommended legislative intervention to specifically address such conduct.

The position was further reinforced when the Supreme Court, in February 2025, dismissed the State of Karnataka's challenge to the High Court's decision, observing that nothing had been shown to establish necrophilia as an offence and therefore finding no reason to take a different view.

This makes the legislative gap particularly clear. The issue is not that India necessarily needs an offence literally called “necrophilia.” The real problem is that Indian criminal law does not clearly place sexual activity involving human remains within a defined criminal offence. Existing provisions may apply in particular circumstances, but they do not specifically address the sexual violation itself.

The introduction of the BNS was therefore an important opportunity to address this gap. Although it retained protection against indignity to a human corpse under Section 301, it did not introduce a separate offence dealing with sexual activity involving human remains. The result is that the central question remains unanswered: if Indian law recognises that human remains deserve protection, where does that protection begin and end when the violation is sexual?

This is the legislative gap that requires attention, not simply the absence of a word in the statute, but the absence of a clear, specific and workable legal framework for dealing with sexual violence against human remains.

IX. Proposed Indian Offence

If there is a gap in the law, the next question is not simply whether sexual violence against human remains should be criminalised. The more important question is how Parliament should criminalise it. A provision that is too narrow may leave the same gap that exists today, while a provision that is too broad may criminalise legitimate medical, forensic or funeral practices. The aim should therefore be to create an offence that is clear enough to prosecute sexual violence against human remains, but precise enough to avoid unnecessary criminalisation.

1. Definition of prohibited conduct

The first issue is what should actually be prohibited. A provision limited only to sexual penetration would be too narrow. The recent reform in England and Wales is useful here. From 29 September 2026, its law covers intentional sexual touching of a corpse, whether or not there is penetration, and distinguishes between penetrative and non-penetrative conduct for sentencing.

India could adopt a similar approach by defining the offence as intentionally engaging in sexual activity with a human corpse, rather than using only the word “intercourse.” This should include penetration, sexual touching and other deliberate sexual contact with the body. The definition should also cover conduct carried out using an object or another instrument, so that the offence cannot be avoided simply because the accused did not use a part of their own body.

At the same time, the law should not criminalise every physical contact with a corpse. Washing, dressing, embalming, conducting an autopsy, collecting forensic evidence, performing medical procedures or preparing a body for burial are obviously not sexual acts merely because they involve physical contact with the body. The focus should therefore be on the sexual nature and purpose of the conduct, not simply on contact with the body.

2. Actus Reus

The actus reus should consist of a sexual act performed upon, with or involving a human **corpse**. Parliament should expressly state that this includes both penetrative and non-penetrative conduct.

This is important because a penetration-only offence creates an artificial distinction between serious sexual abuse of a corpse and sexual touching that may be equally deliberate and degrading. The recent English reform recognised exactly this problem by expanding its offence from “sexual penetration of a corpse” to “sexual activity with a corpse.”

The proposed Indian provision should therefore cover:

- sexual penetration of any part of the corpse;
- sexual touching of the corpse;
- sexual contact using an object or instrument;
- deliberately causing another person or object to sexually interact with the corpse; and
- other conduct that is clearly sexual in nature and directed towards the corpse.

This approach would also avoid the uncertainty created by Section 377 IPC, where the wording was broad but the statutory categories did not clearly extend to a dead body.

3. Mens Rea

The offence should require a clear mental element. The prosecution should have to prove that the accused intentionally performed the sexual act. Accidental contact should never be enough.

The second question is whether the prosecution should have to prove that the accused knew that the person was dead. The better approach would be to require knowledge or recklessness as to the fact of death. This would prevent a person from escaping liability simply by claiming that they did not know the body was dead when the circumstances clearly showed that they were aware, or consciously ignored the possibility.

This is another useful feature of the new English model. Its provision requires intentional touching and requires that the accused either know or be reckless as to whether what they touched was part of a dead person.

Thus, the proposed Indian offence could require proof of two things: first, intentional sexual conduct; and second, knowledge or recklessness that the object of that conduct was a human corpse.

4. Who should the offence apply to?

The offence should be gender-neutral. It should apply regardless of the sex or gender of the offender or the deceased. Sexual violence against human remains should not be framed as a male-on-female sexual offence because the wrong being protected against is the sexual violation of a corpse, not the sexual identity of the people involved.

It should also apply regardless of the age of the deceased. However, the age of the deceased could be treated as an aggravating circumstance at sentencing, particularly where the offender knew or deliberately targeted the body of a child.

The law should similarly not depend on the relationship between the offender and the deceased. A stranger, partner, spouse, relative or caregiver should all fall within the offence if the prohibited conduct is proved.

5. Aggravating Circumstances

Not every case will involve the same degree of wrongdoing. Parliament should therefore consider aggravated forms of the offence.

The punishment could increase where:

- the offender had professional or institutional access to the corpse;
- the offender was a funeral director, mortuary worker, medical professional, forensic worker, hospital employee, crematorium or burial-ground employee, or another person entrusted with the body;
- the offender deliberately abused a position of trust or authority;
- the deceased was a child or particularly vulnerable person;

- the offender mutilated, disfigured or otherwise damaged the corpse;
- the offender removed body parts or retained photographs or recordings of the act for sexual purposes;
- the offender committed the act repeatedly or against multiple corpses; or
- the offence was accompanied by murder, assault, concealment of evidence or another serious offence.

The professional-access aggravation is particularly important. A person who encounters a corpse because their employment gives them access to it occupies a fundamentally different position from someone who obtains access by chance. The abuse of that position represents not only a violation of the deceased but also a breach of institutional trust.

The law should therefore recognise abuse of professional access as an aggravating circumstance rather than making the profession itself an element of the offence. This keeps the basic offence simple while allowing courts to impose a higher sentence where the offender has abused a position of trust.

6. Relationship with Existing Offences

A new offence should supplement rather than replace the existing BNS provisions protecting the dead.

Section 301 of the BNS already protects the dignity of a human corpse in certain circumstances. The proposed offence should operate alongside it rather than attempting to absorb every form of mistreatment of human remains into one provision.

For example, if a person sexually abuses a corpse and also mutilates it, removes parts of it or commits another offence, prosecution should be possible under **both the proposed sexual-offence provision and any other applicable offence**, subject to the ordinary rules against double punishment for the same conduct.

This is important because sexual violence against human remains and indignity to a corpse are not necessarily the same legal wrong. Section 301 protects the dignity of the dead in certain circumstances; the proposed offence would specifically address **sexual violation of a corpse**.

The proposed offence should also operate alongside offences such as murder, destruction or concealment of evidence, trespass, theft or other offences where their separate elements are satisfied. It should not become a substitute for those offences.

7. Safeguards and Legitimate Exceptions

A carefully drafted offence must also make clear what it does not criminalise.

There should be an express exception for conduct carried out lawfully and in good faith for medical, forensic, scientific, educational, religious or funeral purposes. This would cover procedures such as autopsies, post-mortem examinations, embalming, preservation, forensic examination, identification of remains and preparation of a body for burial or cremation.

The important point is that the exception should depend on the purpose and lawful authority behind the conduct, not simply on the occupation of the person performing it. A doctor should not receive a blanket exemption merely because they are a doctor, just as a funeral worker should not automatically be presumed guilty merely because they touched a corpse.

The better safeguard is therefore to require that the conduct be lawfully authorised and genuinely connected to a recognised medical, forensic, scientific, religious or funeral purpose.

8. Custody of Bodies and Evidentiary Concerns

The issue of professional access also creates an important evidentiary problem. People working in hospitals, mortuaries, post-mortem facilities, funeral homes and cremation or burial services may legitimately have physical access to bodies. The law should therefore not treat access to a corpse as evidence of guilt.

At the same time, where a body is under institutional custody, mortuary access registers, CCTV footage, forensic evidence, staff records, digital records and chain-of-custody documentation may become important in establishing who had access to the body and when.

This is particularly important because, unlike an ordinary sexual offence, there is no living victim who can identify the offender or describe what happened. The prosecution may therefore depend heavily on circumstantial and forensic evidence.

The law should allow such evidence to establish the circumstances of the offence, while maintaining the ordinary criminal-law requirement that guilt be proved **beyond reasonable doubt**. Professional access should therefore work in two directions: it may become an aggravating circumstance when abuse is proved, but it should never create a presumption of guilt.

9. Punishment

There is no reliable international “average punishment” for sexual violence against human remains. Different countries use different approaches, and some prescribe maximum sentences while others leave sentencing to their general criminal-law framework.

However, the current comparative position provides a useful benchmark. England and Wales now provide a maximum of seven years where the offence involves penetration and five years for other sexual touching. Canada provides up to five years for its

corpse-related offence, Germany provides up to three years or a fine, while Italy provides higher punishment for aggravated acts involving mutilation, brutality or obscenity.

Seven years is a proposed benchmark derived from comparative legislation, not an established international average. This would place India within the range of comparable jurisdictions without treating punishment as a matter of moral outrage alone.

A higher sentence could apply where there is penetration, mutilation, abuse of professional access, targeting of a child, repeated offending or another serious aggravating circumstance.

10. Consent and the Wishes of the Deceased

A difficult question is whether a person could have consented to such conduct before death. The proposed law should avoid creating a defence based simply on an alleged prior sexual agreement with the deceased. Such a defence would create serious evidentiary problems and could undermine the purpose of the offence.

Instead, a person's **express wishes concerning the treatment of their remains** may be relevant to the broader principle of posthumous dignity, but should not automatically determine whether the offence exists. The protection of human remains should not disappear merely because the deceased left no written instructions.

11. A Possible Indian Model

A possible provision could therefore be framed around a simple principle:

A person commits the offence of sexual activity with a human corpse if that person intentionally engages in sexual activity with a human corpse, knowing or being reckless as to the fact that the person is dead.

“Sexual activity” should expressly include penetration, sexual touching and other sexual contact, including contact using an object or instrument.

The provision could then distinguish between penetration and non-penetrative conduct for sentencing and provide higher punishment for aggravating circumstances such as mutilation, repeated offending, targeting a child or abuse of professional access.

This would avoid repeating the problem identified in *Rangaraju*. The Karnataka High Court specifically observed that the existing IPC provisions did not extend to a dead body and suggested either amending Section 377 or creating a separate offence to protect the dignity of the dead.

X. CONCLUSION

Death is usually understood as the point at which a person's legal identity and physical existence come to an end. But does that mean every legal protection attached to the human body ends with it? Indian law does not give a clear answer when the violation itself occurs after death. A corpse is protected against certain forms of indignity, interference and desecration, yet when that violation becomes sexual, the law enters a space it has never clearly defined.

That is the central problem identified throughout this paper. India does not simply lack a crime called “necrophilia.” The deeper problem is that Indian criminal law does not clearly identify sexual activity involving human remains as a separate criminal wrong. Existing provisions offer limited protection, but they were not designed specifically for this conduct.

The importance of *Rangaraju @ Vajapeyi v. State of Karnataka* lies precisely here. The Karnataka High Court recognised that the existing rape provisions could not be extended to a dead body and that Section 377 IPC could not provide the necessary answer. Rather than creating an offence where Parliament had not done so, the Court highlighted the need for legislative intervention. The Supreme Court's dismissal of the State's challenge in 2025 further reinforced this position by finding that nothing had been shown to establish necrophilia as an offence.

The replacement of the IPC with the BNS did not resolve this problem. Section 301 continues to provide protection against indignity to a human corpse in certain circumstances, but it does not specifically criminalise sexual activity involving human remains. The question therefore remains: if the law recognises that the dead deserve protection, where should that protection begin and end when the violation is sexual?

The comparative analysis shows that India is not alone in facing this difficulty. The legal approaches, however, are very different. South Africa expressly criminalises sexual acts with a corpse. Canada, Germany, Italy and New South Wales rely on broader offences concerning the treatment of human remains. The United Kingdom has recently moved further by expanding its law from sexual penetration of a corpse to sexual activity involving a corpse, including non-penetrative sexual touching. Under the new Section 70, the maximum penalty is seven years where penetration is involved and five years for other sexual touching.

These comparisons also show that India does not necessarily need to copy another country's law. What it needs is a provision suited to its own legal system. A separate, gender-neutral offence would be preferable to artificially extending rape law to a corpse. The offence should clearly identify the prohibited conduct and should not stop at penetration. Sexual touching, deliberate sexual contact and the use of objects or instruments should also be capable of falling within its scope.

The mental element is equally important. The prosecution should have to prove that the accused intentionally performed the sexual act and knew, or was reckless as to

whether, the person was dead. This would prevent accidental or legitimate contact with a corpse from becoming criminal while still addressing deliberate conduct.

The offence should also apply regardless of the sex of the offender or deceased, their relationship, or their social status. At the same time, punishment should reflect the seriousness of the circumstances. There is no reliable international average punishment for such conduct, but comparative laws provide a useful range. A basic offence carrying a maximum of five years, with a higher maximum of seven years where penetration or serious aggravating circumstances are involved, would provide a proportionate starting point. Aggravation could apply where the offender abuses professional access, targets a child, mutilates the body, repeatedly offends or commits another serious offence.

However, criminalisation should not create a new problem while solving the old one. A carefully drafted provision must protect legitimate contact with human remains. Autopsies, forensic examinations, embalming, scientific procedures, religious practices and funeral preparation are necessary and lawful forms of contact with a corpse. The law should therefore criminalise the sexual nature and purpose of the conduct, not physical contact with a body itself. Where bodies are under institutional custody, access records, CCTV, forensic evidence and chain-of-custody documentation may become particularly important because there is no living victim to identify the offender. At the same time, professional access must never create a presumption of guilt.

Ultimately, the issue is not whether the law should punish conduct merely because society considers it unnatural or offensive. The stronger legal question is whether human remains deserve a defined sphere of dignity and protection after death. Indian law already recognises that they do, but only to a limited extent.

Parliament therefore has a choice. It can continue to rely on provisions that were never designed to address sexual violence against human remains, or it can recognise the gap exposed by Indian jurisprudence and create a clear, proportionate and constitutionally defensible offence.

The law does not need to treat the dead as living victims. But death should not mean that their bodies are left without legal protection.

XI. Bibliography

1. Lisa Downing, *Desiring the Dead: Necrophilia and Nineteenth-Century French Literature* (Legenda, Oxford, 2003).
2. *Sexual Offences Act 2003*, s 70, as amended by *Crime and Policing Act 2026*, s 115 (UK).
3. *Criminal Law (Sexual Offences and Related Matters) Amendment Act 32 of 2007*, s 14 (South Africa).
4. *Criminal Code*, RSC 1985, c C-46, s 182 (Canada).
5. *Crimes Act 1900* (NSW), s 81C and s 80AH (Australia).
6. *Crimes Amendment (Sexual Offences and Female Genital Mutilation) Act 2025* No 54 (NSW).
7. *German Criminal Code (Strafgesetzbuch)*, § 168 (Germany).
8. *Codice Penale* (Italian Penal Code), Art. 410 (Italy).
9. *Rangaraju @ Vajapeyi v. State of Karnataka*, Criminal Appeal No. 1610/2017 (Karnataka High Court, 30 May 2023).
10. *State of Karnataka v. Rangaraju @ Vajapeyi*, Supreme Court of India, 4 February 2025.
11. *Navtej Singh Johar v. Union of India*, (2018) 10 SCC 1.
12. *Pt. Parmanand Katara v. Union of India*, (1989) 4 SCC 286.
13. *Bharatiya Nyaya Sanhita, 2023* — India Code.
14. *Bharatiya Sakshya Adhinyam, 2023* — India Code.
15. *Indian Penal Code, 1860*.
16. **India Code** — Official database of Central Acts and legislation.
17. **Indian Kanoon** — Online legal database used for Indian judgments and statutory materials.